



Ayr County Council Order Confirmation Act 1974

CHAPTER ii

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ELIZABETH II



1974 CHAPTER ii

An Act to confirm a Provisional Order under the Private
Legislation Procedure (Scotland) Act 1936, relating to
Ayr County Council.
[10th April 1974]

WHEREAS the Provisional Order set forth in the schedule
hereunto annexed has been made by the Secretary of
State under the provisions of the Private Legislation
Procedure (Scotland) Act 1936, and it is requisite that the said 1936 c. 52.
Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty,
by and with the advice and consent of the Lords Spiritual and
Temporal, and Commons, in this present Parliament assembled,
and by the authority of the same, as follows:—

1. The Provisional Order contained in the schedule hereunto
annexed is hereby confirmed.

Confirmation
of Order in
schedule.

2. This Act may be cited as the Ayr County Council Order
Confirmation Act 1974.

SCHEDULE

AYR COUNTY COUNCIL

*Provisional Order to confer on the Ayr County Council further powers
with respect to the local government and finances of the county;
and for other purposes.*

Whereas it is expedient that further and better provision should be made with respect to the local government and finances of the county of Ayr and that the powers of the county council of the said county in relation thereto should be enlarged and extended as by this Order provided:

1936 c. 52. And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1936:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary of State hereby orders as follows:—

Short and
collective
titles.

1.—(1) This Order may be cited as the Ayr County Council Order 1974.

1935 c. liii.

(2) The Ayr County Council (General Powers) Order 1935 and this Order may be cited together as the Ayr County Council Orders 1935 and 1974.

Interpretation.

2.—(1) In this Order—

1947 c. 43.

“ Act of 1947 ” means the Local Government (Scotland) Act 1947;

“ the Council ” means the county council of the county of Ayr;

“ the county ” means the county of Ayr as administered by the Council;

“ the county fund ” means the county fund of the Council referred to in section 176 of the Act of 1947;

“ enactment ” means any enactment, whether public general or local, and includes any order, byelaw, rule, regulation, scheme or other instrument having effect by virtue of an enactment;

“ rates ” includes sums requisitioned under Part XI of the Act of 1947;

“ signature ” includes a facsimile of a signature by whatever process reproduced.

(2) Any reference in this Order to an enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by, or by virtue of, any subsequent enactment including this Order.

3.—(1) In addition to the modes of borrowing prescribed by the Act of 1947, the Council may raise money— Power to raise money by bills.

- (i) for any purpose for which the Council are authorised to borrow;
- (ii) in anticipation of the receipt of revenues, for any purpose for which the revenues of the Council may properly be applied;

by means of bills (to be called “ Ayr County Council Bills ”, in this section referred to collectively as “ bills ” and separately as “ a bill ”) subject to, and in accordance with, the following provisions:—

- (a) A bill shall be in the form prescribed by regulations made under this section and shall be for the payment of the sum named therein in the manner and at the date therein mentioned, being a date not more than twelve months from the date of the bill:
- (b) A bill shall entitle the holder thereof to payment at maturity of the sum expressed in the bill to be payable:
- (c) Bills may be offered for purchase (whether by tender or otherwise) in such manner and on such conditions as the Council may determine:
- (d) Bills shall be issued under the authority of a resolution passed by the Council, and shall bear the signature of the treasurer to the Council or of some other person authorised by the Council:
- (e) The Council may make regulations providing for—
 - (i) the preparation, form, mode of issue, payment and cancellation of bills;
 - (ii) the issue of new bills in lieu of bills defaced, lost or destroyed;
 - (iii) the prevention, by the use of counterfoils, or of a special description of paper or otherwise, of fraud in relation to bills; and
 - (iv) the giving of a proper discharge on the payment of a bill:
- (f) The amount of money received in respect of a bill shall be deemed to be principal money raised by means of the bill and the difference between the amount payable in respect of a bill and the amount received in respect thereof shall be deemed to be interest on the principal money so raised:

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(g) The aggregate amount payable on bills current at any one time shall not (except by the amount payable on bills issued shortly before any other bills fall due in order to pay off the last-mentioned bills) exceed—

(i) the sum of four million pounds; or

(ii) one-fifth of the amount estimated to be produced by the levying of rates in the county during the then current financial year to meet liabilities falling to be discharged by the Council;

whichever is the greater:

(h) Subject to the provisions of the last foregoing paragraph, the Council may renew a bill at maturity:

(i) The Council may borrow for the purpose of repaying the principal money raised by bills but except as aforesaid any power of the Council to borrow shall be suspended to the extent of the amount which has been raised by the issue of bills.

(2) (a) At the request of a local authority to which this subsection applies who desire to borrow money—

(i) for any purpose for which the local authority are authorised to borrow; or

(ii) in anticipation of the receipt of revenues for any purpose for which the revenues of the local authority may properly be applied;

the Council or a committee of the Council may raise money by means of Ayr County Council Bills and shall lend such money to the local authority:

Provided that the aggregate amount payable on bills issued under this subsection for the purpose of lending to any local authority current at any one time shall not (except by the amount payable on bills issued shortly before any other such bills fall due in order to pay off the last-mentioned bills) exceed one-fifth of the amount estimated to be produced by levying of rates in the burgh of that local authority for the then current financial year and retained for the discharge of its own functions by the local authority.

(b) The aggregate amount payable on bills issued under this subsection current at any one time shall not be taken into account in calculating the aggregate amount referred to in paragraph (g) of subsection (1) of this section.

(c) Any money lent to a local authority by the Council under this subsection shall, if so required by the Council, be repaid to the Council by the local authority on or before the respective dates on which the bills by which the money was raised fall due for repayment.

(d) All costs, charges and expenses incurred by the Council in respect of any particular loan under this subsection shall be met by the borrower.

(e) This subsection applies to any local authority, being the town council of a large burgh in the county, whose rates in the financial year current at the date of any proposed exercise of the powers of this subsection are estimated to produce not less than three million pounds.

4. In addition to any other method by which the Council may raise any money which they are authorised to borrow, they may, with the consent of the Treasury and subject to such conditions as the Treasury may impose, raise the money by means of the issue of bearer bonds or other securities to bearer. Power to raise money by bearer bonds.

5.—(1) Any method by which the Council are empowered by any enactment to raise any money which they are authorised to borrow shall, notwithstanding anything in such enactment, be deemed to include the raising of money by that method outwith the United Kingdom or in any foreign currency. Power to raise money outwith United Kingdom.

(2) The powers conferred by the foregoing subsection shall be exercised only with the consent of the Treasury and subject to such conditions as the Treasury may impose.

(3) The enactments empowering the Council to raise money shall have effect in relation to a transaction authorised by this section for the raising of money in a foreign currency as if—

- (a) for any reference in those enactments to sterling, there were substituted a reference to the foreign currency; and
- (b) for any reference therein to a sum expressed in terms of sterling there were substituted a reference to the sum expressed in terms of the foreign currency (adjusted, where necessary, to produce an amount which the Council consider appropriate having regard to all the circumstances of the transaction).

6. It shall not be lawful to exercise the powers of borrowing conferred by the provisions of this Order, except in compliance with the Exchange Control Act 1947 and any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act 1946. Saving for powers of Treasury.
1947 c. 14.
1946 c. 58.

7.—(1) The costs, charges and expenses preliminary to, and of and incidental to, the preparing, applying for, obtaining and passing of this Order or otherwise in relation thereto shall be paid by the Council out of the county fund or out of moneys to be borrowed under this Order. Costs of Order.

(2) The Council may borrow such sums as may be necessary for paying the costs, charges and expenses of this Order in the same manner as if the said purpose were included among the purposes mentioned in section 258 (1) of the Act of 1947.

(3) The Council shall repay the sums borrowed under the last foregoing subsection within five years from the date of borrowing.

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